

In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)

Present:

Mr. Justice Ashish Ranjan Das

And

Mr. Justice Md. Riaz Uddin Khan

Death Reference No. 169 of 2017

The State

-Vs-

Md. Rabbi Hossain Mona

...Condemned-Prisoner

With

Criminal Appeal No. 14469 of 2017

Md. Rabbi Hossain Mona

...Appellant (Condemned-Prisoner)

-Vs-

The State

...Respondent

With

Jail Appeal No. 02 of 2018

Md. Rabbi Hossain Mona

...Appellant (Condemned-Prisoner)

-Vs-

The State

...Respondent

Mr. S.M. Asraful Hoque, D.A.G with

Mr. Md. Akber Hossain, A.A.G

-----For the State

Mr. Md. Towfic Anower Chowdhury, with

Ms. Afroja Akter, Advocates

...For the Appellant (Condemned-Prisoner)

Judgment on: 22nd February, 2024

Md. Riaz Uddin Khan, J:

The convict prisoner stood trial upon allegation of murder of one Saira Khatun Alo under section 302 of the Penal Code and the trial Judge after concluding the trial convicted the condemned prisoner under section 302 of the Penal Code and sentenced

him to death and following section 374 of the Code of Criminal Procedure this matter has been placed before us as Death Reference. The convict prisoner also filed Criminal Appeal No. 14469 of 2017 before this Court assailing the judgment and order of conviction and sentence.

Short facts of this case is that on 07.09.2013 one Shahjalal lodged a First Information Report with Pallabi Police Station against some unknown accused alleging *inter alia* that the deceased Saira Khatun Alo is his elder sister and used to live with her husband at his rented house and both the informant and his sister were engaged in embroidery job. On 06.09.2013 at about 5.30 p.m. informant's sister Saira Khatun Alo left her house with his brother-in-law Md. Mona, the condemned prisoner with taka 20,000/- to redeem her pawned gold ornament (gold chain). Later, at about 8.30 p.m. the informant received a call from her sister's mobile phone that his sister has been killed. Immediately, the informant went to the place of occurrence and found his sister lying dead at the slope of Abbas Uddin School with multiple injuries of sharp weapons in her body and informed by police that some unknown

accused killed her sister with blows of knives. Thereafter, police prepared inquest report of the dead body and seizure lists after collecting alamat from the spot. The informant suspected that on 06.09.2013, in between 5.30 p.m. and 7.40 p.m. some unknown accused in planned manner having killed his sister with sharp weapons fled away from the spot leaving behind the dead body. After the occurrence, Md. Mona, brother-in-law of the informant's sister remained absconded. Informant suspected the younger brother of his sister's husband the condemned prisoner, Md. Mona son of late Md. Ismail in connection with the killing of his sister.

On the above allegation Pallabi Police Station Case No. 34 dated 07.09.2013 corresponding to GR No. 628 of 2013 under sections 302/34 of the Penal Code was started against some unknown accused persons.

Police prepared the inquest report of the dead body and sent the same to the Hospital for autopsy wherein it was done accordingly.

On 11.09.2013 the police arrested the condemned-prisoner and on 12.09.2013 he made confession before the learned Magistrate. After investigation Police submitted charge sheet being No. 141 dated 30.04.2014 under

section 302 of the Penal Code against the appellant.

After exhausting necessary steps the learned Magistrate transmitted the case record to the Court of the learned Metropolitan Sessions Judge, Dhaka and the same was registered as Metropolitan Sessions Case No. 4734 of 2014 and later Metropolitan Sessions Judge, Dhaka sent the case record to the learned Judge (District and Sessions), Druto Bichar Tribunal-4 and Special Sessions Court, Dhaka.

Having received the case on 10.06.2014 for trial, the learned Judge, Druto Bichar Tribunal-4 and Special Sessions Court, Dhaka framed charge against the appellant under section 302 of the Penal Code and the same was read over to him and he pleaded not guilty and demanded trial.

The prosecution examined 7 (seven) witnesses who are P.W-1 Police Constable Md. Sohel Rana, P.W-2 Md. Shahjalal (informant), P.W-3 Kusum Akter, P.W-4 Md. Atiqur Rahman, P.W-5 Md. Sohel, P.W-6 Abdul Baten (Investigating Officer) and P.W-7 Dr. Sohel Mahmud. On conclusion of the examination of prosecution witnesses the learned trial Judge examined the appellant under section 342 of

the Code of Criminal Procedure and he pleaded not guilty once again and inclined to adduce evidence in support of his case. Then the defence examined 3 witnesses and they are D.W-1 Md. Rabbi Hossain @ Mona (appellant), D.W-2 Murad Hossain and D.W-3 Sahana and also produced some documents to prove the defence case.

After conclusion of the trial the learned Judge of the trial court found the convict appellant guilty under section 302 of the Penal Code and sentenced him to death by the impugned judgment and order dated 10.12.2017.

The learned Deputy Attorney General (DAG) appearing for the State in support of the Death Reference submits that the condemned prisoner made confession under section 164 of Code of Criminal Procedure admitting his guilt describing vividly how he committed the murder of deceased Saira Khatun Alo. In this case there is no eye witness but the statement made by the condemned prisoner is true and voluntary for which the impugned judgment of conviction and sentence is rightly passed. The learned DAG then submits that the circumstantial evidence also support the guilt of the condemned prisoner as the inquest report and the postmortem report also

support the description of killing given by the condemned prisoner in his confessional statement under 164 of the Code of Criminal Procedure. In support of his contention the learned Deputy Attorney General cited a catena of decisions namely the case of Monir Ahmed vs The State reported in 16 SCOB [2022] AD 51; Khalilur Rahman vs State reported in 59 DLR 227; State vs Mokammel Hyeath Khan reported in 58 DLR 373; State vs Anjuara Khatun reported in 57 DLR 277 and the case of Zakir Hossain vs State reported in 55 DLR 137 contending that the judgment of conviction can safely be passed based only upon the confession against the maker if the same is true and voluntary. In the present case the prosecution has proved that the confession made by the condemned prisoner is true and voluntary. The learned DAG prays for allowing the Death Reference.

Per contra, Mr. Md. Towfic Anowar Chowdhury along with Ms. Afroja Akter the learned advocate appearing for the condemned prisoner-appellant submits that none has been named in the First Information Report as assailant of the deceased, Saira Khatun Alo and it is stated therein that unknown persons killed the deceased. In absence of any direct

evidence to prove the murder, prosecution relied on the confessional statement of the condemn prisoner and circumstantial evidence. There is no direct evidence of murder in this case. No eye witnesses have deposed to prove the involvement of the condemn prisoner with the murder of the deceased. The learned Special Sessions Judge accepted the confessional statement of the accused as voluntary and true.

The learned advocate citing the depositions of the PWs submits that prosecution has failed to establish that the condemn prisoner was with the deceased on the fateful afternoon/evening of the occurrence and after committing the murder, he left the place of occurrence. The confessional statement of the condemned prisoner was neither voluntary nor true inasmuch as the condemn prisoner retracted his confessional statement by filing a petition on 06.10.2013 alleging torture by the police. Moreover, as DW-1, the condemn prisoner specifically brought allegation of torture by the police and he further stated that at the relevant time he was admitted in the hospital for his appendic operation which was also supported by the depositions of DWs-2 and 3.

Mr. Chowdhury then submits that so far the confessional statement is concerned, the prosecution failed to adduce any unimpeachable evidence in support of the fact that the accused Rabbi Hossain @ Mona was with the deceased at the place of occurrence (which is actually a public road) and that after committing the murder he fled away. Further the prosecution failed to produce any evidence to show that the knife, the seized incriminating weapon was used for committing the murder of the deceased since PW-6, the I.O admitted during his cross examination that it was not sent for chemical examination. None of the P.Ws. stated that the knife contained any human blood. More so, the knife was not marked as material Exhibit to prove that it was used as weapon for killing the deceased. Apart from the confessional statement the prosecution failed to prove the charge of murder against the condemn prisoner by adducing any reliable evidence. The sheet anchor of prosecution is the confessional statement which was retracted by the accused. Reading the statement between the lines it appears that the bulk of the statements made therein are inconsistent and improbable with human nature

and cannot be stated as true statement of fact. The prosecution took no step to prove the confessional statement was true. The confessional statement as against its maker is supposed to be the best evidence, but when a confession is made the foundation for conviction, the Court must be satisfied that it is true and voluntary. The truth or falsity of a confessional statement has to be weighed by the Court in the light of all facts and surrounding circumstances of the case. Normally it would not be quite safe as a matter of prudence to base a conviction for murder on the basis of a retracted confession alone when the confession is open to good deal of criticism especially when the proof of factum of murder is itself solely dependent upon a confession. Moreover, the version of events given in the confessional statement is not only highly improbable but the facts stated therein were not corroborated by any other evidence and as such, it will be unsafe to base a conviction for murder on such a confessional statement. A retracted confession is always open to suspicion and cannot be acted upon unless it is corroborated by credible independent evidence. Section 24 of the Evidence Act

requires the confession should not only be voluntary but it also must be true- for the purpose of establishing its truth, examination of the confession and its comparison with remaining evidence of the prosecution and probability of the case would be relevant.

The learned advocate continued to submit that confessional statement on which the prosecution much relied on is totally inadmissible in evidenced inasmuch as it is tainted by torture, threat, intimidation and promise as such, it should be excluded from consideration. Statement of satisfaction endorsed by the Magistrate does not show that the confession was made voluntarily and it may not be relied upon. By proper scrutiny of the questions put to condemn prisoner by the Magistrate, it does not disclose that Magistrate made a sincere endeavour to ascertain if confession was made freely and voluntarily.

In absence of any direct evidence to prove the murder of the victim, prosecution relied on circumstantial evidence besides being on the confessional statement. Circumstantial evidence led in this case does

not conclusively prove the guilt of the appellant.

He further submits that it has not been proved beyond reasonable doubt that victim Saira Khatun Alo was stabbed by the knife found at the place of occurrence by expert evidence and she succumbed to that knife injuries found on his person. So, the possibility of another heavy and sharp weapon other than the seized knife cannot be ruled out. Also 3 (three) pairs of seized sandals do not rule out the possibility that more than one assailant killed the victim. Prosecution story "must be true" and not merely "may be true". Considered as a whole the prosecution story may be true. But between "may be true" and "must be true" there is inevitably a long distance to travel and whole distance must be covered by legal, reliable and unimpeachable evidence. In order to convict a person charged with murder there should be unimpeachable evidence of reliable witnesses bringing home the guilt of the accused beyond any reasonable doubt. The burden is certainly on the prosecution to establish its case whether that burden has been discharged or not by the prosecution should be decided on the facts of the case as

a whole and if in dealing with the whole case a reasonable doubt arises then the benefit of that doubt be given to the accused. From evidence it appears that condemn prisoner's participation in the alleged crime is a doubtful one. Since the prosecution has not been able to bring home the charge against the condemned prisoner beyond any reasonable doubt.

The learned advocate finally submits that the Police arrested the convict-appellant on 11.09.2013 and because of the inhuman torture and interrogation on him, the appellant was compelled to make judicial confession on 12.09.2013 and later on 06.10.2013 the appellant filed an application for retracting the said confessional statement stating how he was tortured by the police and compelled to made the confessional statement. The appellant while examined by the trial Court under section 342 of the Code of Criminal Procedure, he reiterated his contention that the confessional statement was involuntary and made under duress and compulsion, therefore, the statement which has been obtained forcefully cannot be the basis of the conviction. As such, it would be unsafe to convict the appellant and award death

sentence on the basis of the confessional statement which has been taken or recorded without complying the guidelines as prescribed by the Apex Court and the method laid down in section 364 of the Code of Criminal Procedure.

On these grounds, the learned advocate implored this Court to reject the Death Reference, set aside the impugned judgment and acquit the appellant.

In support of his contention the learned advocate cited a series of decisions such as the case of State-vs-Manik Bala reported in 41 DLR 435; State-vs-Md. Ali Kibria @ Shahajahan reported in 43 DLR 512; State-vs-Md. Abdul Khaleq and others reported in 73 DLR 260; Abdul Qaiyum-vs-State reported in 6 BLC 415; State-vs-Md. Roushan Mondal @ Hashem reported in 59 DLR 72 and the case of Khashru @ Khorshed-vs-The State reported in 35 DLR 119.

In order to appreciate the submissions made at the bar let us first examine the evidence of the instant case. Prosecution has examined 7 witnesses while the defence adduced 3 witnesses.

PW-1 Md. Sohel Rana, a constable of police who brought the dead body to the Dhaka

Medical College Hospital for autopsy through chalan and thereafter handed over the dead body to the family members. He proved the chalan as exhibit-1 and his signature on it as exhibit-1/1. He also proved the seizure list of apparels of the deceased as exhibit-2 and his signature on it as 2/1.

PW-2 Md. Shahjalal is the informant who stated in his examination in chief that occurrence took place at 5.30 pm on 6.9.13 when his sister went with her brother-in-law Mona to redeem her pawned chain with Tk-20000/-. At about 8.30 pm he received a phone call from his sister's mobile phone that she has been killed and he rushed to the place of occurrence and found the dead body on the slope of Abbasuddin School. Police prepared inquest report which is marked as exhibit-3 and his signature on it as exhibit-3/1. He lodged ejahar suspecting the condemn prisoner as he went on hiding after the occurrence. He proved the ejahar as exhibit-4 and his signature on it as exhibit-4/1 and the seizure list of mobile phone, knife and sandals as exhibit-5 and 5/1 respectively. In his cross he stated that the deceased was his elder sister whose husband is Soheli. Accused Mona and Soheli are full brothers. At the time

of occurrence he used to live with his sister. He received a call at 8.30 pm from his sister's mobile phone and the police informed that his sister has been killed. He rushed to the place of occurrence which was ½ kilometer away from the residence, after informing the incident to Sohel. The occurrence place road is 8/10 feet wide. He did not find his sister alive and he thought she could be killed one hour prior to his presence. Next day morning he lodged the ejahar which was typed. The accused had a job of embroidery work and did not have any enmity. He denied the suggestion that he lodged false case against the accused due to enmity or police after arresting the accused through torture obtained confession due to his suspicion or he deposed falsely. He has no knowledge of enmity between the accused and the deceased.

PW-3 Kusum Akter, a public witness who is a nearby resident of the place of occurrence stated in her examination in chief that a bloodstain dead body of a woman was found near the sand field of Abbasuddin School at 8.30 pm on 6.9.13. police prepared inquest report and she identified her signature on it which is marked as exhibit-3/2. She heard

that sister of Shahjalal is the deceased. In her cross examination she stated that her residence is 7/8 minutes walking distance from the place of occurrence and she went there after hearing the news of finding a dead body. She did not see the occurrence. There was a mobile phone with the dead body. She denied the suggestion that she deposed falsely or she did not went to the place of occurrence.

PW-4 Md. Atiqur Rahman is the learned Magistrate who recorded the confessional statement of the condemned prisoner on 12.9.13. He stated that he recorded the confessional statement of Md. Rabbi Hossain @ Mona following the legal procedure and the accused after confessing voluntarily put his 7 signatures and he put 8 signatures on it which he proved as exhibit-6 and 6/1 respectively. In his cross-examination he stated that the accused was produced by the Investigating Officer (IO) Abdul Baten at 11 am when he was at his chamber and gave 3 hours for reflection under the supervision of his peon and he ensured that at that time the IO was not with the accused. Before recording he asked 5 statutory questions to the accused and recorded the statement at his chamber. He

cut the date 28/10 and then wrote 12.9.13 in the form. The accused wrote his name in English in part and then in Bangla. He could not remember how much time was required for recording the statement. The accused did not make any complain regarding torture on him. He denied the suggestion that he recorded the false statement or took signatures of the accused on a prior recorded statement or deposed falsely.

PW-5 Md. Sohel is the husband of the deceased who stated in his examination in chief that on 6.9.13 the informant told him that the deceased is missing and he unsuccessfully tried to communicate with the deceased for about 1 hour her mobile phone and later on a police received his call and he went to the place of occurrence and saw the dead body of his wife. Police prepared seizure list on which he put his signature and proved it as exhibit-5/2. His brother-in-law lodged the ejahar and the accused is present on the dock. In his cross he stated that the accused is his full younger brother. He did not see the killing and did not know where the accused was at the date of occurrence. The seized goods were recovered from an adjacent dust-bin. He denied the

suggestion that he deposed falsely as he had no good relation with the accused.

PW-6 Md. Abdul Baten, sub-inspector of police is the Investigating Officer who deposed that he visited the place of occurrence on 6.9.13 after taking the responsibility of investigation. He prepared the inquest report of deceased Saira and proved his signature on it as exhibit-3/3. On 7.9.13 he seized bloodstain apparels of the deceased and prepared seizure list, sketch map and also seized the knife, mobile phone and sandals and accordingly a seizure list was prepared. He recorded the statements of the witnesses under section 161 of the Code of Criminal Procedure and after arrest produced the accused before the learned Magistrate for recording judicial confession. He submitted charge sheet after proper investigation against the accused who was on the dock. In his cross-examination he stated that he went to the place of occurrence on 6.9.13 after the magrib prayer and prepared the seizure list at 21.45 pm. There is a light post at the place of occurrence. The knife was not examined by the expert. The sim card was inside the mobile and he searched for the call list. Witness Sohail is the

husband of the deceased and full brother of the accused and Shahjalal is the informant of the case. He recovered the knife from the place of occurrence and he went there many times of which he prepared a sketch map. There is little darkness under the light post. He did not get any witness of nearby place of occurrence. The accused confess next day after his arrest. He denied the suggestion that the accused confess as per his instruction or out of fear of torture. He found injuries on various parts of the deceased and cannot say whether those injuries were also detected in the post mortem report. He denied the suggestion that he interrogated the accused for 3 days after taking remand or could not find the place of occurrence or he did not investigate properly and if proper investigation was done there would not be any charge sheet or more than one accused should have been charge sheeted or he submitted false charge sheet in a false case or the accused is innocent or he deposed falsely.

P.W. 7 Dr. Sohel Mahmud the Medical expert who conducted autopsy on the body of the deceased stated that on 7.9.13 he conducted autopsy on the body of deceased

Saira Khatun, a woman of about 20 years of age and found various injury marks and on dissection finally opined that the cause of death was due to hemorrhage and shock resulting from mentioned injuries which was ante-mortem and homicidal in nature. He proved the post mortem report and marked his signature on it as exhibit-9 and 9/1 respectively. In his cross-examination he stated that he received the dead body at 1.30 pm, an assistant was with him. The injuries were caused by sharp and heavy weapon. Right side of the head was injured. He cannot say when the deceased was killed. The IO did not meet him. No head injury was mentioned in the inquest report. No injury on face was found but stab injury was found on the left neck. He denied the suggestion that he made the autopsy report in contradiction to medical jurisprudence or without examining the body of the deceased.

3 (three) DWs were examined on behalf of the condemned prisoner.

DW-1 Md. Rabbi Hossain @ Mona is the condemned prisoner who stated in his examination in chief that he was admitted to hospital 2 days before the date of occurrence when an operation on his appendis was held.

Police arrested him from the hospital and interrogated. He knew nothing about the occurrence. Police tortured him taking 3 days remand and told that if he confesses then he would be released. Confession was obtained through coercion. He was not involved with the occurrence and he is innocent. In cross he stated that he was admitted in the hospital 2/3 days before the occurrence. He cannot say the date of releases from the hospital. Police compelled him to confess. He denied the suggestion that he was present at the place of occurrence or he killed the deceased or confession was not obtained through duress or he made confession voluntarily or he deposed falsely.

DW-2 Md. Murad Hossain is the cousin (Khalato vai) of the condemned prisoner who stated that the accused was suffering abdominal pain 3/4 days before the occurrence and was taken to Dhaka Medical College Hospital where an operation on his appendis was held on 4.9.13. Later he heard about the murder of sister-in-law of the accused. He didn't know who killed her. Police arrested the accused before his release from the hospital and beat the accused. In cross he stated that he is a resident of Mirpur-11. He

and other neighbours took the accused to hospital before the occurrence. The accused was taken to Al-Samia hospital at first and then to Dhaka medical at 5 pm but cannot say the ward number, it was on the ground floor. The accused has 4 full brothers but the medical documents are with him which was submitted later. He denied the suggestion that no operation of the accused was held on 4.9.13 or the accused was not taken to hospital or he deposed falsely to free the accused.

DW-3 Shahana is the full sister of the condemned prisoner who stated that 3/4 days before the occurrence the accused was taken to Al shafi hospital due to abdominal pain and was sent to Dhaka Medical. On 4.9.13 an operation was held. Her sister-in-law was killed on 6.9.13 and she didn't know who killed her. The accused was arrested 2 days later by police and interrogated him and beat him. She knew that her brother was not involved with the occurrence but police arrested him on suspicion. In cross she stated that when the accused was taken to hospital her sister-in-law or brother Sohel were not present. She gave Tk-12000/- for operation of his brother. She denied the

suggestion that on 4.9.13 no operation was held of the accused or falsely deposed to free her brother.

Beside the above statements of the witnesses of both the sides the condemned prisoner made a judicial confession recorded under section 164 of the Code of Criminal Procedure on 12.09.2013 after 6 days of alleged occurrence which is reproduced below:

“আমি এবং আলো আপা আমার ভাই সোহেলের কারখানায় কাজ করতাম। সেই কারখানার মালিক ছিল আমার ভাই সোহেল। আমি শুরুতে কারখানার জন্য অনেক শ্রম দেই। এখন কারখানা বেশ বড় হয়েছে। গত রোজার ঈদের পর থেকে আলো আপা আমাকে আমার ভাইয়ের কারখানা ছেড়ে অন্যত্র কাজ নিতে বলে। আমি আপাকে বলি, ভাইয়া আমাকে অন্য জায়গায় কাজ নিতে বলেছে কিনা? আপা আমাকে বলে বাইরে কাজ করবে ভাইরে জিজ্ঞাসা করার দরকার কি? আমি অলরেডি তখন ভাইয়ার কারখানার কাজ করা ছেড়ে দিয়েছি। ইতোমধ্যে একদিন দেখি আলো আপার ভাই আমার ভাইয়ার কারখানায় কাজের জন্য এসেছে। তখন আমি বুঝতে পারি আসলে আনোয়ার ভাইকে কারখানায় আনার জন্যই আলো আমাকে কারখানা থেকে সরে যেতে বলেছিল। আনোয়ার ভাই আসার পর আমার কাজ আনোয়ার ভাই শাহজালালকে করতে দেয় এবং আলো আপা আমার সাথে খারাপ আচরণ করতে থাকে। আমি কারখানায় গেলে আলো এবং তার ভাই আমাকে নিয়ে হাসাহাসি করত। তখন আমি ভাইবা নেয় যে, হয় আলোকে কিছু একটা করব নয়তো আমি নিজেই কিছু একটা করব। আমি আলোকে উচিত শিক্ষা দেয়ার জন্য সুযোগ খুজতে থাকি। একদিন আমি আলোকে বলি একজন লোক সমস্যায় পরে সোনার গয়না বেচবে আপনি চাইলে কম দামে সে গয়না কিনতে পারেন। আলো রাজি হলে আমরা বুধবারে সেখানে গয়না কেনার জন্য যেতে ঠিক করি। আমি বুধবারে আলোকে ফোন করলে আলো বলে বুধবারে তার বাসায় মেজবান আসবে যেতে পারবে না। পরে শুক্রবারে যাবে বলে আলো আমাকে কথা দেয়। বুধবারে যাওয়ার কথা ছিল বলে আমি বুধবারে ১১.০০ টার

দিকে মিরপুর-৬ নম্বর থেকে একটা ছুড়ি কিনি ৬০/- টাকা দিয়ে। আমাদের কথা ছিল বিকাল ৪.০০ টার দিকে আপা আমার সাথে যাবে। আমি আমার ভাই সোহেল কে বলি ভাইয়া ২০০/৩০০ টাকা দাও আমি কেরানীগঞ্জ যাব। তখন আমার ভাই ২০০/- টাকা দিলে আমি তিনটা মাইলাম এবং দশটা সিডিল ঔষধ কিনে টাইগারের সাথে মিশিয়ে খেয়ে নেই আমি আলোকে নিয়ে যাওয়ার অপেক্ষা করতে থাকি। শুক্রবারে সন্ধ্যার পর পরই আমি এবং আলো আপা হাটতে হাটতে বাসা থেকে বের হয়ে যাই। বাসা থেকে বের হয়ে আব্বাস উদ্দিন স্কুলের সামনে দাড়িয়ে প্রায় পাঁচ মিনিটের মত কথা বলি। সেখানে নিরিবিলি জায়গা ছিল। কথা বলতে বলতে আমি আপাকে ছুরি দিয়ে মোট ৫/৬ টা ঘাই দেই। আপা চিৎকার করে পড়ে যায়। আমি সেখান থেকে দৌড় দিয়ে পালিয়ে যাই। কিছুদিন এদিক-সেদিক পালিয়ে ছিলাম কিন্তু আমার কিছুই ভাল লাগছিল না। আমি ঘুমাতে পারি নাই খেতে ও পারি নাই। বাড়ির লোকজনও ফোন করে আমাকে বলতে থাকে তোর জন্য আজ পুলিশ, RAB আমাদের বাড়িতে আসে। সবকিছু চিন্তা করে আমি নিজের ইচ্ছায় পল্লবী থানায় গিয়ে পুলিশের কাছে ধরা দেই। এই আমার বক্তব্য।”

These are the evidences before us. We have given our thoughtful consideration to the submissions made at bar and have gone through the impugned judgment as well as the evidence available on record.

Admittedly there is no eye witness, so the prosecution solely relied on the confession of the condemned prisoner along with the circumstantial evidence.

First of all, we would like to reiterate the principles laid down by this Court as well as by the Appellate Division governing the evidentiary value of judicial confession against the maker.

A confession in a criminal proceeding cannot be a basis of conviction if the making of such confession appears to the Court to be the result of a threat, coercion or inducement sufficient to tempt the accused making the confession to believe that by doing so (s)he would avoid an evil. Unless true, voluntary and inculpatory in nature confession without independent corroboration cannot form the basis of conviction. Judicial confession can legally be taken into consideration against the maker, and if the confession is found to be true and voluntary and inculpatory in nature, then there is no need at all to look for further corroboration. In other words, as against the maker himself his confession, whether retracted or not, can in law validly form the sole basis of his conviction if the Court is satisfied and believes that it was true, voluntary and inculpatory in nature and was not obtained by torture or coercion or inducement. The question, however, as to whether in the facts and circumstances of a given case the Court should act upon such a confession alone is an entirely different aspect, which relates to the weigh and evidentiary value of the confession and not

to its admissibility in law. In the existing scheme of criminal trial, an accused can be convicted either on his pleading guilty to the charge or on his judicial confession recorded under section 164 of the Code of Criminal Procedure or even on extra-judicial confession provided it is strongly corroborated by other evidence.

In the case of recording judicial confession, it has to be recorded by the Magistrate in strict compliance of sub-section (3) of section 164 of the Code of Criminal Procedure (hereinafter referred to as the Code). The Magistrate is required to certify that the confession was recorded after giving the accused necessary caution and sufficient time for reflection and he is satisfied that the accused made the statement voluntarily. The act of recording confession is a very solemn act and in discharging his duties, the Magistrate must take care to see that the requirements of sub-sections (2) and (3) of section 164 of the Code are fully satisfied. No element of casualness should be allowed to creep in and the Magistrate should be fully satisfied that the confession which the accused wants to make it in fact and in substance voluntary and the Magistrate must

give a brief statement of his reason for believing that the confession was voluntarily made. In doing so the Magistrate must put questions to the confessing accused to find out if the confession is made out of repentance or for any other good reason or whether it is the result of torturing or tutoring by somebody or whether it has been caused by any inducement, threat or promise. The question or questions put to the accused, whatever the form, must be designed to show whether the accused is making the confession voluntarily. The judicial consensus is that the requirements of the mandatory provisions of section 164 of the Code are to be strictly complied with before a confession is admitted into evidence and is used against the accused. The recording Magistrate is to make a real and substantial inquiry to ascertain the voluntariness of the confession. When a confession has been recorded by a Magistrate after complying with the provisions of sections 164 and 364 of the Code the said confession can be admitted into evidence by the Court under section 80 of the Evidence Act even without examining the recording Magistrate. However, if a confession is recorded in disregard to the formalities of

the law as required, it need not be ruled out altogether as it may still be saved by the curative provisions of section 533 of the Code and proved, if the error committed in noncompliance with the provisions of section 164 and 364 of the Code has not injured the accused in his defence. The confession may partly be true and partly false and the accused may be convicted on the basis of the true part of the confession if found justified warranting such conviction and the Court is required to give due weight to both parts of the confession. Once a confession is found to be true and voluntary, a belated retraction will be of no help to the confessing accused. The necessity even of some sort of corroboration in such case is not a requirement of law but it is usually desired as a rule of prudence. A free and voluntary confession deserves highest credit, because it is presumed to flow from highest sense of guilt.

These are the views and principles settled by the apex Court of this subcontinent including our, starting from the case of Nazir Ahmed vs. the King Emperor, reported in AIR 1936 (Privy Council) 253 to Shukur Ali vs. State reported in 74 DLR (AD)

11. Reference also may be made to the cases reported in 1964 PLD (SC) 813; 12 DLR (SC) 156; 16 DLR (SC) 598; 21 DLR (SC) 182; 39 DLR (AD) 117; 39 DLR (AD) 194; 1986 BLD (AD) 1; 1988 BLD (AD) 109 = 40 DLR (AD) 139; 44 DLR (AD) 51; 13 BLC (AD) 84; 7 ADC 427; 48 DLR 305; 1994 BLD 332; 3 MLR 57; 6 MLR 205; 51 DLR 244; 59 DLR 17; 59 DLR 396; 61 DLR 253; 7 BLC 62; 13 BLT 151 and so on.

Keeping in view the above mentioned legal principles, if we go through the facts of the instant case, we find that there is no eye witness. The informant, the brother of the deceased who used to live with her at that time, lodged the ejahar suspecting the condemned prisoner, Rabbi Hossain @ Mona stating that Mona took the deceased on the pretext of taking back her pawned gold chain and Mona was in hiding after the occurrence. No prosecution witness saw the occurrence and even saw the deceased with the condemned prisoner before or after the occurrence. However, the condemned prisoner made judicial confession recorded under section 164 of the Code of Criminal Procedure. In his judicial confession the condemned prisoner stated that he was fired from his job on the instigation of his sister-in-law, the deceased and he was

looking for an opportunity to do harm to her. Then he allured her to go with him for purchasing gold at cheap rate and taking her into the place of occurrence stabbed her 5/6 times by a knife which he earlier bought by tk-60/- and then run away. He further stated that he went on hiding for some days but was feeling discomfort and even he could not sleep and eat properly. He received phone calls from inmates that because of him police/RAB were going to their house. Considering all these aspect he voluntarily surrendered to the police of Pallabi police station. The recording Magistrate who was examined as PW-1 stated that he recorded the confessional statement of the accused following the procedure and the accused made confession voluntarily being aware of its consequences. He gave the accused 3 hours for reflection. In his cross the Magistrate stated that the accused did not make any complain of torture or assault. However, he admitted that he cut the date of 28/10 and then wrote 12.9.13 in the form of the confession. After going through this confession along with the deposition of PW-4, the Magistrate who recorded the confession it transpires to us that condemned prisoner

Rabbi Hossain @ Mona made confessional statement being fully aware of its consequences and his repentance led him to make the confession as he killed his sister-in-law. According to his statement he voluntarily surrendered to the police of Pallabi police station wherefrom he was shown arrested and made the confession at the earliest possible time without being any police remand. During recording of his confessional statement accused Rabbi Hossain @ Mona did not complain of any torture by the police while in custody and the Magistrate also did not find any marks of assault on the person of the accused Mona and no such endorsement is found in Exhibit-6, the confession.

Thus, on consideration of the evidence on record, particularly the depositions of PW-2, the informant, PW-4, the Magistrate who recorded the confession, PW-7, the doctor who conducted the postmortem along with the confession and the postmortem report we are of the firm opinion that the charge framed under section 302 of the Penal Code has been proved beyond all reasonable doubt against the condemned prisoner. Though the defence tried to prove by adducing defence witnesses

and producing some documents to show that the confessional statement was not true and voluntary and also took alibi that at the relevant time the appellant was in the hospital but failed to prove it as the trial court found those documents doubtful and created for the purpose of the defence of the present case. The depositions of DWs have no credence and also not trustworthy as rightly found by the trial court. There are some minor discrepancies in the prosecution evidence as pointed out by the learned advocate for the condemned prisoner but it do not create any doubt in our mind having no contradiction in material facts.

We have already avowed by a catena of decisions of our Supreme Court as well as India and Pakistan that it is well settled that confessional statement if found inculpatory in nature and also true and voluntary it can be used against its maker and conviction can be based on it without any further corroborative evidence. In the instant case, the confession made by accused Rabbi Hossain @ Mona was not only inculpatory in nature but also true and voluntary and, as such, the trial court very rightly based solely on confession correctly convicted the

condemned prisoner Rabbi Hossain @ Mona by impugned judgment and order having duly found him guilty for the offence committed under section 302 of the Penal Code.

The evidence, the inculpatory confessional statement and materials on record, clearly proved that the deceased was done to death by stab injuries caused by Rabbi Hossain @ Mona, the condemned prisoner. In the inquest report as well as in the postmortem report multiple injuries were found. The nature of injuries is "sufficient to cause death" which makes out a clear case of murder punishable under section 302 of the Penal Code. There is no eye witness in the present case and the prosecution relied solely upon the confession of the condemned prisoner, a young man of only 23 years of age who lost his job some days before the occurrence allegedly on the instigation of the deceased and in that view of the matter, we are of the opinion that justice would be met if the condemned prisoner is sentenced to imprisonment for life instead of death.

In such facts and circumstances, the impugned judgment and order of conviction passed against the condemned prisoner under section 302 of the Penal Code is upheld and

the sentence is commuted to imprisonment for life instead of death.

The result is, therefore, the Death Reference No. 169 of 2017 is rejected. The Criminal Appeal No. 14469 of 2017 along with Jail Appeal No.02 of 2018 preferred by the condemned prisoner is dismissed. The conviction of the condemned prisoner under section 302 of the Penal Code is hereby upheld and he is sentenced to suffer imprisonment for life.

Send down the lower court's record along with a copy of this judgment and order at once.

Ashish Ranjan Das, J:

I agree.